

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #4	CCRB Case #: 201706524	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/10/2017 3:00 AM	Location of Incident: § 87(2)(b)	Precinct: 40	18 Mo. SOL 2/10/2019	EO SOL 2/10/2019	
Date/Time CV Reported Thu, 08/10/2017 9:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/10/2017 9:37 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Madera	08743	953033	PSA 7
2. POM Dennis Moss	25884	932188	PSA 7

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Marcin Drozd	12468	960480	PSA 7
2. POM Dennis Pino	20754	963213	PSA 7
3. SGT Darell Dennison	03962	943159	PSA 7
4. POM John Gallagher	25883	932679	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A.POM Luis Madera	Abuse: Police Officer Luis Madera threatened to damage § 87(2)(b) property.	§ 87(2)(b)
B.POM Dennis Moss	Abuse: Police Officer Dennis Moss threatened to damage § 87(2)(b) property.	§ 87(2)(b)
C.POM Luis Madera	Abuse: Police Officer Luis Madera refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)
D.POM Dennis Moss	Abuse: Police Officer Dennis Moss refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)

Case Summary

On August 10, 2017, § 87(2)(b) filed this complaint on behalf of her mother, § 87(2)(b) at the CCRB by telephone.

On August 10, 2017, at approximately 3 a.m., officers, identified by the investigation as PO Luis Madera, PO Dennis Moss, PO Marcin Drozd, PO Dennis Pino, PO John Gallagher, and Sgt. Darell Dennison, all of Police Service Area 7, responded to a 911 call regarding an assault in progress at § 87(2)(b), in the Bronx. When the officers knocked on the door, the resident of the apartment, § 87(2)(b) refused to open it. Two of the officers, identified by the investigation as PO Madera and PO Moss, told § 87(2)(b) “We could bash your door in” (**Allegations A and B**). § 87(2)(b) said, “Give me your badge numbers.” PO Madera and PO Moss did not respond (**Allegations C and D**), and left the location.

This incident did not result in an arrest or summons.

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On October 30, 2017, a FOIL request was sent to the Comptroller’s Office, and will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is § 87(2)(b) and § 87(2)(b) first CCRB complaint (BR 01).
- PO Madera has been a member of the NYPD for five years, and this is his first CCRB complaint.
- PO Moss has been a member of the NYPD for fourteen years, and has been the subject of two prior complaints involving one allegation in each case. Neither allegation was substantiated, § 87(2)(g)

Potential Issues

Video footage was obtained from the Mott Haven NYCHA complex, but does not capture the allegations (BR 13).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) said she heard two voices outside of her apartment threaten to break down her door. Because § 87(2)(b) refused to open the door or look through the peephole, she could not provide a physical description of the officers. § 87(2)(b) could not discern anything about the voices except that they sounded male and black.

PO Madera, a Hispanic male, and PO Moss, a black male, both acknowledged that they spoke to § 87(2)(b) through the door. PO Moss confirmed that PO Madera knocked on the door and spoke to § 87(2)(b).

PO Drozd similarly said PO Madera spoke to § 87(2)(b). PO Drozd denied speaking to § 87(2)(b) himself, as did all other officers (BR 05-06, BR 08-09).

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Luis Madera threatened to damage § 87(2)(b) property.

Allegation B – Abuse of Authority: Police Officer Dennis Moss threatened to damage § 87(2)(b) property.

§ 87(2)(g)

It is undisputed that officers went to § 87(2)(b) apartment. § 87(2)(g)

According to § 87(2)(b) she was asleep inside of § 87(2)(b), in the Bronx, when she was awakened by banging on her door. § 87(2)(b) went to the door and asked who was there. Two voices replied, “Police.” The officers informed § 87(2)(b) that they received a call that someone was hurt inside of the apartment. § 87(2)(b) told the officers that she did not call the police. § 87(2)(b) then called 911 twice because she did not believe the officers were the police and wanted them away from her door (BR 03).

§ 87(2)(b) refused to open the door, despite the officers’ and 911 operator’s requests. The officers told § 87(2)(b) “We could bash your door in.” (In § 87(2)(b) CCRB phone statement, she reported the officers’ phrasing as, “We will bust down the door if you don’t open the door” (BR 10)). § 87(2)(b) was not on the phone with 911 at the time of this statement.

§ 87(2)(b) said one of her children – she did not identify her by name – was also home at the time of this incident, but was asleep in the rear bedroom of the apartment, and thus did not witness the allegations.

The EVENT Information and 911 CD revealed that an anonymous caller told the 911 operator that it sounded like a male was beating up a female inside of § 87(2)(b), and then hung up without providing further details (BR 02, BR 11). Additional EVENTS also confirmed that § 87(2)(b) called 911 twice to ask the dispatcher to have the officers leave because she did not call the police (BR 02).

PO Madera stated that he knocked on the door of § 87(2)(b) apartment door upon arrival and identified himself as a police officer (BR 04). PO Madera told § 87(2)(b) “We are here to help. We just want to make sure you’re okay.” PO Madera heard § 87(2)(b) explain to a 911 operator that she did not believe that the people outside of her door were the police. PO Madera tried the call back number associated with the 911 call to ascertain more information, but there was no answer. PO Madera did not say, “We will bust down the door if you don’t open the door,” or “We can bash your door in,” and did not hear any other officer make these statements.

PO Moss was consistent with PO Madera in that he identified PO Madera as the officer who knocked on the door, identified the officers as police officers, and stated that they received a call that someone was hurt. § 87(2)(b) refused to open the door. PO Moss spoke to § 87(2)(b) through the door, and requested that she look through the peephole to see that the officers were in fact the police. PO Moss heard § 87(2)(b) on the phone with 911, stating that she did not believe that the people at her door were officers. § 87(2)(b) still refused to come to the door. PO Moss did not say, “We will bust down the door if you don’t open the door,” or “We can bash your door in” and did not hear any other officer make these statements during his interaction with § 87(2)(b) (BR 07).

The Fourth Amendment protects an individual’s privacy in a variety of settings, but none of these settings is more clearly defined than in the home. Individuals have the explicit right to

retreat into their own home and be free from unreasonable government intrusion. Payton v. New York, 445 U.S. 573 (1980) (BR 18).

People v. Greenleaf, 222 A.D.2d 838 (1995) (BR 16), established that in a case of emergency, a warrantless entry into one's residence does not violate the constraints of the Fourth Amendment. In order for the emergency exception to apply, the following conditions must be met: 1) the police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property, (2) the search must not be primarily motivated by intent to arrest and seize evidence, and (3) there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched.

In the case of People v. Casillas, 134 A.D.3d 1394 (2015) (BR 14), when police officers arrived at an apartment, they did not observe anything unusual, did not have direct, personal knowledge that the occupants of the apartment were engaged in a domestic dispute, and knew only that the defendant was inside and refusing to open the door. The court ruled that the information officers had was not sufficient to establish that there was an emergency at hand.

In People v. Rice, 168 A.D.2d 901 (1990) (BR 17), the court ruled that officers wrongly entered and searched an individual's home, as they entered without confirmed reliability of the anonymous tip they received.

Officers may damage property when it is reasonably necessary to effectuate a lawful action. Onderdonk v. State, 170 Misc. 2d 155 (1996) (BR 15).

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Police Officer Luis Madera refused to provide his name and shield number.

Allegation D – Abuse of Authority: Police Officer Dennis Moss refused to provide his name and shield number.

According to § 87(2)(b) after her second call to 911, she told the officers, “Give me your badge number,” when she was standing about two feet from the door. The officers did not reply. § 87(2)(b) did not indicate why she thought the officers were still at her door at the time of her request for their badge numbers. She did not have further conversation with the officers after this request.

Both PO Madera and PO Moss said that they did not hear § 87(2)(b) ask for their badge numbers, and did not refuse to provide that information. PO Drozd, Sgt. Dennison, PO Gallagher, and PO Pino confirmed that they did not hear § 87(2)(b) request their badge numbers. They did not refuse to provide this information and did not hear any other officer do so.

§ 87(2)(g)

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date